

Brackenridge Civil Group Inc

www.brackenridgecivil.com

June 12, 2005

James Skinner, General Manager, Evans-Lee

Re: Roadway Widening Study, Professional Engineering Services

Dear Mr. Skinner:

This letter sets out the terms on which Brackenridge Civil Group Inc will prepare a roadway widening study for Evans-Lee. It follows our meeting at your office and the plat and correspondence your staff furnished afterward. When you have signed and returned it, this letter is the agreement between us, and it supersedes what either of us said before it.

Scope of Services

The study addresses the widening of the roadway serving your property from its existing two-lane rural section to the section the county public works department will require as a condition of development approval. Our services are limited to preliminary engineering and to the report that documents it. Final construction drawings, permit applications, right-of-way plats, and services during construction are not included in this engagement and would be the subject of a separate agreement. We will perform the following:

- Field survey of the existing roadway, ditches, drives, and utility appurtenances within the study limits, tied to the county's horizontal and vertical control.
- Turning-movement and volume counts at the intersections within the study limits, taken on ordinary weekdays while school is in session, and a capacity analysis of each intersection under existing and projected conditions.
- Development of a typical section and of a horizontal and vertical alignment sufficient to establish the limits of grading and the right-of-way required.
- Preliminary drainage analysis of the corridor, including the existing cross drains and the conveyance and detention the widened section will require.
- Identification of utility conflicts from record information furnished by the utility owners, and a written summary of the relocations the alignment appears to force.
- An opinion of probable construction cost at the preliminary engineering level, and a written report presenting our findings, our recommended section, and the basis for it.

Our Approach

We will begin with the record information rather than with the field: your plat and boundary survey, the county's as-built drawings for the existing roadway and its cross drains, and the utility records. What that assembly leaves unanswered is what the survey is for, and we would rather spend the survey where the answers are missing than run a corridor twice. The counts follow the survey. The alignment work and the drainage analysis proceed together, because on a corridor of this kind the ditch grade and the profile are one question and not two, and a recommendation that separates them is a recommendation that gets sent back.

The report will carry one recommended section and the reasoning that produced it. It will note the alternatives we considered and why we set them aside. We do not present a menu and ask the client to engineer, and we do not qualify a recommendation so heavily that it commits us to nothing.

Project Team

Linda George, Project Engineer, will manage the engagement and will be your day-to-day contact. She is responsible for the drainage analysis and for the report, and she will attend the progress meetings at the Evans-Lee office and any meeting the county calls on this project. Jeffrey Perez, Design Technician, will prepare the base mapping, the exhibits, the typical section, and the quantity takeoffs that support the cost opinion. I will review the study and seal it before it is issued, as I do with everything that leaves this office. Where a question needs an answer from us, put it to Linda George; where it needs a decision from Evans-Lee, we will contact you directly and put the request in writing.

Fee and Schedule

Our fee for the services described above is a lump sum of \$112,500, which includes the survey, the counts, our travel within the county, and reproduction of the report in the quantity you have requested. Work will commence on June 22, 2005, subject to your written authorization and to our receipt of the record information identified above. We estimate the study will be complete approximately four months thereafter. That estimate assumes the county and the utility owners answer our requests for record drawings within the ordinary time. If they do not, we will contact you when we see the delay and not after it has cost you the schedule.

Fees and Payment

We will invoice monthly for the portion of the work completed in the preceding month. Invoices are payable net thirty days from the date of the invoice. Sums outstanding beyond sixty days bear interest at the maximum rate permitted by law. Services outside the scope described above will not be performed without your written authorization, and when authorized they will be invoiced at our standard hourly rates then in effect.

Term and Termination

This agreement takes effect on the date of your signature below and continues until the study has been delivered and our final invoice paid. Either party may terminate on fourteen days written notice to the other. Upon termination you will pay us for services performed and expenses incurred through the effective date, and we will deliver our work product in the condition it then exists. We may suspend the work on written notice if an invoice remains unpaid beyond sixty days, and we are not responsible for the schedule consequences of a suspension so caused.

Confidentiality

We will hold the information you furnish in confidence and will not disclose it to a third party except as required to perform the study, and except as required by law or by an agency having jurisdiction over the project. You should understand that our submittals to the county on your behalf become public record when they are filed, and we cannot make them otherwise. We ask the same treatment of our report and drawings, which are instruments of service prepared for this project and are not to be used on another without our written consent.

Limitation of Liability

Our liability to Evans-Lee arising out of this agreement, whether in contract or in tort, shall not exceed the total fee paid to us under it. We do not warrant record information furnished by others, including the utility records and the county's as-built drawings, and where such information proves incorrect the consequences of the error are not ours to bear. The opinion of probable construction cost is an opinion prepared by an engineer familiar with the local market. It is not a bid, and it is not a guarantee that the work can be constructed for that figure.

Governing Law

This agreement is governed by the laws of the state in which the project is located. Any dispute the parties cannot resolve between themselves will be submitted to mediation before either commences litigation, and the cost of the mediator will be borne equally.

We are pleased to have the opportunity to perform this work, and we appreciate your confidence in the firm. If the foregoing is acceptable, please sign both copies where indicated, return one to this office, and retain the other for your file. If any part of it is not acceptable, telephone me and we will discuss it before you sign.

Very truly yours,

Mark Todd

Principal Engineer

Date: June 12, 2005

James Skinner

General Manager, Evans-Lee

Date: June 12, 2005